

obligors because it bars only repeated claims for the same relief *between the same parties*. (Id at 823, emphasis in the original.)

However, issue preclusion, or collateral estoppel, may bind a party to the resolution of an issue actually litigated in the first action and bar re-litigation of the issue in a subsequent action against a joint obligor of a party in the first action. (Id at 827.) Issue preclusion can be asserted by one who was not a party to the first action against a party to that action who had a full and fair opportunity to litigate the issue in the first case but lost. (Id at 826-827.) Moreover, contrary to Plaintiff's contention, collateral estoppel can be raised by one who was not in privity with a party in the first suit. (Id at 825.) Thus, Meadows may assert the issue preclusion without establishing privity with Voguebay.

Plaintiff argues that the breach of contract claim is not barred by collateral estoppel because the issues addressed in the UD Action, namely possession of the Subject Property are different from those raised in the present case. "In unlawful detainer proceedings, ordinarily the only triable issue is the right to possession of the disputed premises, along with incidental damages resulting from the unlawful detention." (*Martin-Bragg v. Moore* (2013) 219 Cal. App. 4th 367, 385.) The cognizable claims in an unlawful detainer proceeding are those "bearing directly on the immediate right of possession." (*Hong Sang Market, Inc. v. Peng* (2018) 20 Cal. App. 5th 474, 490-491.) "Cross-complaints and affirmative defenses are permissible only to the extent that they would, if meritorious, preclude a court from removing a tenant from the premises." (Id at 491.)

"[A]n unlawful detainer judgment has limited [preclusive] force because it typically follows a summary proceeding focused only on deciding a party's right to immediate possession of property." (*Struiksma v. Ocwen Loan Servicing, LLC* (2021) 66 Cal. App. 5th 546, 554.) Claim preclusion does not bar a subsequent claim if the claim could not have been raised or litigated in the earlier action. (*Hong Sang Market, supra*, 20 Cal. App. 5th at 491.) Although the res judicata effect of an unlawful detainer action is narrow, it is not nonexistent and applies to all issues fully tried in the proceeding. (*Gombiner v. Swartz* (2008) 167 Cal. App. 4th 1365, 1371.) If court makes findings regarding the terms of the rental agreement and amount of rent due, such issues have been actually litigated and the collateral estoppel applies to the findings in any subsequent action to recover the rental obligation. (*Cinnamon Square Shopping Center v. Meadowlark Enterprises* (1994) 24 Cal. App. 4th 1837, 1843.)

Here, the Court in the UD Action litigated the issue of the assignment of the Lease and determined that there was no landlord-tenant relationship between Plaintiff and Voguebay. While the UD Complaint contained a prayer for damages (see Deft. Ex. 1), the Court entered judgment for Voguebay with Plaintiff to take nothing. Since these issues were litigated and final judgment was entered, claims for damages based on the same assignment are precluded. The Court GRANTS Defendant Meadow's Motion for Summary Judgment.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506130	TOVSTOLIS VS SAVRYHA	DEMURRER ON COMPLAINT

Tentative Ruling: OVERRULED.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600380	BARTELS VS COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling: The Court OVERRULES the demurrer to the 5th cause of action. The Court SUSTAINS, with thirty days leave to amend, as to the 1st – 4th and 6th causes of action.